EU AI Act: Chatbots Must Tell You They Are Not Human from August 2

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On August 2, 2026, the transparency rules in Article 50 of the EU AI Act start to apply. Any AI system built to talk to people, whether a chatbot, a voice assistant, or an AI agent, must make clear that the user is dealing with a machine, not a human. The notice has to be easy to spot and shown no later than the first interaction, so burying it in the terms of service will not pass. The same article makes providers of generative AI mark text, images, audio, and

video as artificially generated, and makes anyone posting a deepfake label it. The rules cover almost every public-facing AI product in the EU, open-source included.

Breaking these rules can cost up to €15 million or 3% of a company's worldwide annual revenue, whichever is larger, billions for the biggest platforms. The duty reaches far more businesses than the rest of the Act: a shop with a support bot, a newsroom drafting articles with AI, or a startup running an AI companion all owe users a clear disclosure, even when none of their systems are rated high-risk.

Lawmakers recently pushed the heavier high-risk parts of the Act back to 2027 and 2028, yet the chatbot disclosure rule stayed on its original date. Telling people when a machine is talking is now treated as the floor, not a detail to phase in later. What stays unsettled is when an AI is obvious enough to skip the warning.

Read More: ChatGPT's self-updating memory and the regulators waiting for it

Sources:

- Article 50: Transparency Obligations for Providers and Deployers of Certain AI Systems
- The EU AI Act's Transparency Rules: A Practical Guide to Article 50
- Article 99: Penalties
- EU AI Act Implementation Timeline
- Regulation (EU) 2024/1689 (the AI Act), official text on EUR-Lex

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